

THE BHARATIYA SAKSHYA ADHINIYAM, 2023 (Act No. 47 of 2023)
Enactment Authority: Ministry of Home Affairs / Parliament of India
Year of Enactment: 2023

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Section 1: Short title, extent and commencement

Section 1. Short title, extent and commencement.?

- (1) This Adhinyam may be called the Bharatiya Sakshya Adhinyam, 2023.
 - (2) It extends to the whole of India and applies to all judicial proceedings in or before any Court.
 - (3) It shall come into force on the 1st day of July, 2024.
- This Adhinyam consolidates the law of evidence in India, replacing the Indian Evidence Act, 1872, with modern rules for digital records, electronic evidence, and forensic proof.

Section 2: Definitions of evidence, document and digital record

Section 2. Definitions.? In this Adhiniyam, unless the context otherwise requires,?

- (a) 'Court' includes all Judges and Magistrates, and all persons, except arbitrators, legally authorised to take evidence;
- (b) 'document' means any matter expressed or described or otherwise recorded upon any substance by means of letters, figures or marks or by more than one of those means or by electronic and digital means, intended to be used, or which may be used, for the purpose of recording that matter;
- (c) 'evidence' means and includes?
 - (i) all statements which the Court permits or requires to be made before it by witnesses, in relation to matters of fact under inquiry, such statements are called oral evidence;
 - (ii) all documents including electronic records produced for the inspection of the Court, such documents are called documentary evidence;
- (d) 'proved'? A fact is said to be proved when, after considering the matters before it, the Court either believes it to exist, or considers its existence so probable that a prudent man ought, under the circumstances of the particular case, to act upon the supposition that it exists.

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Section 57: Primary evidence

Section 57. Primary Evidence.?

Primary evidence means the document itself produced for the inspection of the Court.

Explanation 1.?Where a document is executed in several parts, each part is primary evidence of the document.

Explanation 2.?Where a document is executed in counterpart, each counterpart being executed by one or some of the parties only, each counterpart is primary evidence as against the parties executing it.

Explanation 3.?Where a number of documents are all made by one uniform process, as in the case of printing, lithography, or photography, each is primary evidence of the contents of the rest.

Explanation 4.?Where an electronic or digital record is created or stored, and such storage occurs simultaneously or sequentially in multiple files, each such file is primary evidence.

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Section 58: Secondary evidence

Section 58. Secondary Evidence.?
Secondary evidence includes?

- (a) certified copies given under the provisions hereinafter contained;
- (b) copies made from the original by mechanical processes which in themselves ensure the accuracy of the copy, and copies compared with such copies;
- (c) copies made from or compared with the original;
- (d) counterparts of documents as against the parties who did not execute them;
- (e) oral accounts of the contents of a document given by some person who has himself seen it;
- (f) oral admissions, written admissions or evidence of a person skilled in examination of electronic records.

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Section 61: Admissibility of electronic or digital record

Section 61. Admissibility of Electronic or Digital Record.?

Nothing in this Adhinyam shall apply to deny the admissibility of an electronic or digital record in the evidence on the ground that it is an electronic or digital record and such record shall have the same legal effect, validity and enforceability as other document.

Electronic records including emails, server logs, mobile chat transcripts, digital documents, audio files, video files, and optical media are valid legal evidence across all civil and criminal courts in India.

Section 63: Admissibility of electronic records and statutory certificate

Section 63. Admissibility of electronic records and certificate requirement.?

- (1) Notwithstanding anything contained in this Adhiniyam, any information contained in an electronic record which is printed on a paper, stored, recorded or copied in optical or magnetic media or cloud storage produced by a device shall be deemed to be also a document and shall be admissible in any proceedings, without further proof or production of the original, if the conditions mentioned in this section are satisfied.
- (2) The conditions referred to in sub-section (1) in respect of an electronic record are:
- (a) the computer output containing the information was produced during the period over which the computer was used regularly to store or process information;
 - (b) during the said period, information of the kind contained in the electronic record was regularly fed into the computer;
 - (c) throughout the material part of the said period, the computer was operating properly.
- (3) In any proceedings where it is desired to give a statement in evidence by virtue of this section, a certificate doing any of the following things, that is to say,?
- (a) identifying the electronic record containing the statement and describing the manner in which it was produced;
 - (b) giving such particulars of any device involved in the production of that electronic record;
 - (c) dealing with any of the matters to which the conditions mentioned in sub-section (2) relate,
- and signed by a person in charge of the computer or communication device or the management of the relevant activities shall be evidence of any matter stated in the certificate.

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Section 104: Burden of proof

Section 104. Burden of proof.?
Whoever desires any Court to give judgment as to any legal right or liability dependent on the existence of facts which he asserts, must prove that those facts exist.
When a person is bound to prove the existence of any fact, it is said that the burden of proof lies on that person.

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Section 106: Burden of proving fact especially within knowledge

Section 106. Burden of proving fact especially within knowledge.?
When any fact is especially within the knowledge of any person, the burden of proving that fact is upon him.
Illustration: When a person does an act with some intention other than that which the character and circumstances of the act suggest, the burden of proving that intention is upon him.

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Section 117: Presumption as to dowry death

Section 117. Presumption as to dowry death.?
When the question is whether a person has committed the dowry death of a woman and it is shown that soon before her death such woman had been subjected by such person to cruelty or harassment for, or in connection with, any demand for dowry, the Court shall presume that such person had caused the dowry death.